

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 1386

By: Gillespie and Prieto of the
Senate

and

Hildebrant and Woolley of
the House

COMMITTEE SUBSTITUTE

[courts - pilot project - rules - audio and video
recordings - assessment - provisions - effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 20 O.S. 2021, Section 1512, is
amended to read as follows:

Section 1512. A. As used in this section, "verified court
reporter shortage" shall mean a budgeted court reporter position
that has remained vacant for more than ninety (90) days or with a
projected retirement within twelve (12) months for which no
successor has been identified.

B. The Supreme Court ~~is authorized to~~ shall establish a pilot
project for the use of ~~videotape~~ audio and video recording equipment
in courtrooms for the production of ~~videotape records~~ audio and

1 video recordings for transcripts where court reporters are not
2 ~~available, if the Supreme Court has funds available that can be used~~
3 ~~for this purpose~~ and for the preservation of public access to
4 judicial records. The pilot project shall be implemented in a
5 minimum of twelve courtrooms, with preference given to courtrooms
6 without a court reporter. The Administrative Office of the Courts
7 shall promulgate rules for the use of audio and video recording
8 equipment in courtrooms. ~~Rules for use of video equipment in~~
9 ~~courtrooms must have the approval of the Supreme Court.~~

10 C. Rules promulgated pursuant to subsection B of this section
11 shall include, but not be limited to:

12 1. Technical specifications for the acquisition, installation,
13 maintenance, and operation of audio and video recording equipment;

14 2. Standards for the digitization, storage, secure
15 preservation, retention, and archiving of audio and video
16 recordings;

17 3. Standards allowing judicial restriction of audio and video
18 recording upon written findings that are supported by clear and
19 convincing evidence and narrowly tailored to protect a compelling
20 interest;

21 4. Standards restricting access to audio and video recordings
22 of proceedings related to family law to interested parties and
23 presiding judges;

1 5. Procedures for portable audio and video recording systems
2 outside permanent courtroom facilities;

3 6. Requirements ensuring compatibility of audio and video
4 recordings with the Oklahoma Court Information System pursuant to
5 Sections 1314 and 1315 of this title; and

6 7. Standards prohibiting the photographing or recording of:

7 a. jurors or prospective jurors pursuant to Sections 853
8 and 853.1 of Title 22 of the Oklahoma Statutes,

9 b. minors protected pursuant to Section 1-6-107 of Title
10 10A of the Oklahoma Statutes,

11 c. protected victims or witnesses pursuant to Section
12 142A-9 of Title 21 of the Oklahoma Statutes and
13 Section 60.14 of Title 22 of the Oklahoma Statutes,

14 d. vulnerable adults pursuant to Section 10-110 of Title
15 43A of the Oklahoma Statutes, and

16 e. any other person whose identity is confidential under
17 state or federal law.

18 D. Audio and video recordings created pursuant to this section
19 shall constitute part of the official record and shall include
20 sufficient metadata to verify authenticity and detect alteration.
21 Any transcript prepared from audio and video recordings shall be
22 produced and certified in accordance with applicable laws and
23 Supreme Court rules governing transcript preparation.
24

1 E. The Administrative Office of the Courts shall conduct an
2 annual statewide assessment evaluating:

3 1. Verified court reporter shortage totals by judicial
4 district;

5 2. Projected retirements of court reporters within five (5)
6 years;

7 3. Court reporter recruitment and retention challenges;

8 4. Average transcript preparation time from request to
9 certification in pilot and non-pilot courtrooms;

10 5. Audio and video recording system operational time
11 percentages, documented equipment failure incidents, and average
12 system downtime durations due to equipment failure or tampering;

13 6. Case processing timelines and continuances attributable to
14 court reporter unavailability; and

15 7. The impact on access to justice in understaffed courts.

16 F. The Administrative Office of the Courts shall electronically
17 submit the annual assessment described in subsection E of this
18 section to the Governor, the President Pro Tempore of the Senate,
19 and the Speaker of the House of Representatives. A comprehensive
20 five-year assessment shall be submitted no later than sixty (60)
21 days prior to the convening of the regular legislative session
22 following the fifth anniversary of the effective date of this act.
23 Such assessment shall be electronically submitted to the Legislature
24

1 for evaluation of whether the pilot project should be maintained,
2 expanded, or modified.

3 G. If the annual assessment demonstrates that verified court
4 reporter shortages exceed twelve courtrooms, the Supreme Court may
5 authorize expansion of the pilot project to additional courtrooms in
6 a number equal to the documented shortages, subject to legislative
7 appropriation. Nothing in this section shall be construed to
8 require expansion without specific legislative appropriation.

9 SECTION 2. This act shall become effective November 1, 2026.

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